

26CHCV01621 26CHCV01621

County: los-angeles

Division: Civil Law and Motion

Department: F47

Hearing date: 2026-09-16

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Case Number: 26CHCV01621 Hearing Date: September 16, 2026 Dept: F47

Dept. F47

Date: 9/16/26

Case #26CHCV01621

MOTION TO SET

ASIDE DEFAULT

Demurrer filed on 5/18/26.

MOVING PARTY: Defendant Claudia Marie

RESPONDING PARTY: Plaintiff MU Holding Enterprises, Inc.

RULING: The motion is placed off calendar.

On 4/22/26, Plaintiff MU Holding Enterprises, Inc.

(Plaintiff) filed this unlawful detainer action against Defendants Michael Collins (Collins); Claudia Marie (Marie); Brett Mosloy (Mosloy); Gordon Leverett (Leverett); J. Erin (Erin); John Doe (John); Kim Doe (Kim); Brett Doe (Brett); and Jamie Doe (Jamie) regarding residential property located at 15023 Devonshire Street, Mission Hills, CA 91345.

On 5/18/26, Marie filed (served on 5/11/26) a demurrer to the complaint. On 6/30/26, the Court overruled Marie's demurrer and ordered that Marie had 10 days, excluding Saturdays and Sundays and other judicial holidays, plus 5 additional court days

from the mailing of the notice of ruling by the court to file and serve an answer to the complaint. (See 6/30/26 Minute Order). On 6/30/26, the Court mailed notice of the ruling to Marie. (See 6/30/26 Certificate of Mailing).

Marie did not file an answer within the time allotted. On 7/24/26, the Court entered Marie's default.

On 7/27/26, Marie filed the instant motion to set aside default. The motion was originally scheduled for hearing on 12/23/26. On 7/28/26, the Court granted Marie's ex parte application to advance the hearing on the motion.

The hearing on the instant motion was set for 9/16/26. (See 7/28/26 Minute Order). The clerk gave notice of the ruling on the ex parte application on 7/28/26. (See 7/28/26 Certificate of Mailing).

Although the Court gave notice of the ex parte ruling advancing the hearing on the motion from 12/23/26 to 9/16/26, there is no proof of service for the underlying motion. No proof of service is attached to the motion and no proof of service for the motion has been separately filed.

Since there is no evidence that the underlying motion was ever served on Plaintiff and there is no opposition or other response to the motion to cure the defect in notice, the motion is placed off calendar.